

Uday Singh v. State of U.P. — recovery notice relegated to Para 6.8 objection

High Court of Judicature at Allahabad · Division Bench · 31 May 2022 · WRIT - C No. 15031 of 2022 · **Writ disposed; Para 6.8 objection with eight-week stay of recovery.**

HEADNOTE

Without deciding merits, the Allahabad High Court disposed of a consumer's challenge to a 11 January 2022 electricity recovery notice by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directing time-bound disposal after hearing, and staying coercive recovery for eight weeks or until that disposal, whichever is earlier.

FACTUAL SUMMARY

Uday Singh petitioned the Allahabad High Court to quash recovery pursuant to a 11 January 2022 revenue-determination notice (patrank no. 7573/V.V.Kha.-VI/Bulandshahr) issued by the Executive Engineer, Paschimanchal Power Supply Corporation Ltd., Power Supply Division-VI, Bulandshahr, and to restrain further recovery. Counsel for the distribution company stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery notice; stay of coercive action

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the assessing officer within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Challenge to a 11.01.2022 recovery notice was disposed by directing a time-bound Para 6.8 objection, with stay of coercive action for eight weeks or till disposal, whichever is earlier. ¶ 4-5

assessment-6.8-alternate-remedy The Court declined merits review of the recovery notice and relegated the consumer to the statutory objection under Para 6.8. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 11.01.2022 RECOVERY NOTICE AND DEMAND

Disposed without expressing any opinion on merits. ¶ 4